This transformation is making labour virtually a ‘labour capitalist’, using skills and knowledge as intellectual capital to contribute to the production of goods and services. Even sophisticated services can now be delivered using digital knowledge and skills.

All these profound changes necessitate a rethink in government policies, programmes and legislations for protection and welfare of labour.

Enact a Single Modern Workplaces Legislation

India enacted several legislations to provide for safe and healthy workplaces. For instance, the Factories Act, 1948, took care of the safety, health and working conditions in manufacturing factories, while the Mines Act, 1952 and the Plantation Labour Act, 1951, did the same for mines and plantations respectively. The Motor Transport Workers Act, 1961, sought to take care of workers engaged in the operation of vehicles. There were different laws for cine workers, dockworkers, construction workers, beedi and cigar workers, and so on. Similar laws were enacted for interstate migrant workers, working journalists and other newspaper employees.

The Occupational Safety, Health and Working Conditions Code, 2020, consolidates the safety, health and working conditions provisions of these thirteen laws in one Code. It neither recognizes the fundamental change in workplaces and nor does it create a modern law to appropriately address these concerns. It also does not simplify the administration of and compliance with the right working condition requirements.

Labour laws relating to safety, health and working conditions are still caught up in the time warp of the nineteenth and twentieth centuries. The consolidated Code of Occupational Safety, Health and Working Conditions displays the same outdated mindset. It essentially groups together different occupational laws in a single code, building on a dividing line of ten workers or less. All occupations employing ten or more workers need to